

IN THE SENATE

SENATE BILL NO. 1389

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO POLLING PLACES; AMENDING SECTION 34-302, IDAHO CODE, TO PROVIDE A LIMITATION OF LIABILITY FOR OWNERS OF PROPERTY USED AS A POLLING PLACE; AMENDING SECTION 63-602, IDAHO CODE, TO REVISE PROVISIONS REGARDING PROPERTY EXEMPT FROM TAXATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-302, Idaho Code, be, and the same is hereby amended to read as follows:

34-302. DESIGNATION OF PRECINCT POLLING PLACES -- LIMITATION OF LIABILITY. (1) The board shall, by the fifth Friday before any election, designate a suitable polling place for each election precinct. Insofar as possible, the board shall designate the same polling place for the general election that it designated for the primary election. The physical arrangements of the polling place shall be sufficient to guarantee all voters the right to cast a secret ballot. Public school facilities shall be made available to the board as precinct polling places. All polling places designated as provided herein shall conform to the accessibility standards adopted by the secretary of state pursuant to the voting accessibility for the elderly and handicapped act, 52 U.S.C. 20101 et seq. The expense of providing such polling places shall be a public charge and paid out of the county treasury.

(2) An owner of a property who either directly or indirectly invites or permits without charge any person to use such property as a polling place owes no duty of care to keep the property safe for entry by others for polling purposes or to give any warning of a dangerous condition, use, structure, or activity on such land to persons entering for polling purposes. The installation of a sign or other form of warning of a dangerous condition, use, structure, or activity; any modification made for the purpose of improving the safety of others; or the failure to maintain or keep in place any sign, other form of warning, or modification made to improve safety shall not create liability on the part of an owner of property where there is no other basis for such liability. Additionally, such owner of a property does not, by permitting such use as a polling place:

(a) Extend any assurance that the property is safe for any purpose;

(b) Confer on any person entering on such owner's property the legal status of an invitee or licensee to whom a duty of care is owed; or

(c) Assume responsibility for or incur liability for any injury to person or property caused by an act or omission of any person entering on such owner's property.

SECTION 2. That Section 63-602, Idaho Code, be, and the same is hereby amended to read as follows:

63-602. PROPERTY EXEMPT FROM TAXATION. (1) Property shall be exempt from taxation as provided in titles 21, 22, 25, 26, 31, 33, 39, 41, 42, 49, 50, 67 and 70, Idaho Code, and in chapters 6, 24, 30, 35 and 45, title 63, Idaho Code; provided, that no deduction shall be made in assessment of shares of capital stock of any corporation or association for exemptions claimed under this section, and provided further, that the term "full cash value" wherever used in this act shall mean the actual assessed value of the property as to which an exemption is claimed.

(2) The use of the word "exclusive" or "exclusively" in this chapter shall mean used exclusively for any one (1) or more, or any combination, of the exempt purposes provided hereunder and property used for more than one (1) exempt purpose, pursuant to the provisions of sections 63-602A through 63-60200, Idaho Code, shall be exempt from taxation hereunder as long as the property is used exclusively for one (1) or more or any combination of the exempt purposes provided hereunder.

(3) All exemptions from property taxation claimed shall be approved annually by the board of county commissioners or unless otherwise provided:

(a) Exemptions pursuant to sections 63-602A, 63-602F, 63-602I, 63-602J, 63-602L(1), 63-602M, 63-602N, 63-602R, 63-602S, 63-602U, 63-602V, 63-602W, 63-602Z, 63-602DD(1), 63-602EE, 63-60200, 63-2431, 63-3502, 63-3502A and 63-3502B, Idaho Code, do not require application or approval by the board of county commissioners. For all other exemptions in title 63, Idaho Code, the process of applying is as specified in the exemption statutes or, if no process is specified and application is necessary to identify the property eligible for the exemption, annual application is required. Exemptions in other titles require no application.

(b) For exemptions that require an application, provided such exemptions are for property otherwise subject to assessment by the county assessor, the application must be made to the county commissioners by April 15 and the taxpayer and county assessor must be notified of any decision by May 15, unless otherwise provided by law. The decision of the county commissioners and any subsequent assessment notices sent to the taxpayer may be appealed to the county board of equalization pursuant to sections 63-501 and 63-501A, Idaho Code.

(c) For exemptions that require an application, provided such exemptions are for property otherwise subject to assessment by the state tax commission, application for exemption shall be included with the annual operator's statement as required pursuant to section 63-404, Idaho Code. Notice of the decision and its effect on the assessment will be provided in accordance with procedures specified in chapter 4, title 63, Idaho Code. Appeals shall be made to the state tax commission in accordance with section 63-407, Idaho Code.

(4) An owner of property that is intended for a tax-exempt purpose may apply to the board of county commissioners for a provisional property tax exemption, pursuant to section 63-1305C, Idaho Code.

(5) The use of any property receiving an exemption provided in section 63-602B, 63-602C, or 63-602E, Idaho Code, as a polling place pursuant to section 34-302, Idaho Code, or for other election-related purposes authorized by law, shall not be deemed inconsistent with the property's tax-exempt sta-

1 tus and shall not affect, impair, or disqualify the property from receiving
2 or maintaining such exemption.

3 SECTION 3. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.